

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2024CUPP028158: SHM ANACAPA ISLE, LLC vs PACIFIC COASTAL CRUISES &
TOURS LTD., et al.**

**07/21/2026 in Department 21
Motion to Strike Jury Demand**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant’s Motion to Strike Jury Demand (*Opposed*)

Tentative Ruling:

Defendants Pacific Coastal Cruises & Tours, Ltd. and Anthony Anania’s motion to strike Plaintiff SHM Anacapa Isle, LLC’s jury demand is DENIED.

Defendants’ alternative request to remove the maritime damages and valuation issues from the jury and try those issues to the Court is also DENIED without prejudice to a properly presented request concerning any discrete statutory limitation-of-liability issues.

Counsel for Plaintiff to give notice within two (2) court days.

Discussion:

The parties do not materially dispute that federal maritime law governs the substantive measure of damages. The issue is whether application of maritime law requires the remaining factual disputes to be decided by the Court rather than a jury.

Under the saving-to-suitors clause, federal district courts have original jurisdiction over admiralty and maritime cases, “saving to suitors in all cases all other remedies to which they are otherwise entitled.” (28 U.S.C. § 1333(1).) A claimant may therefore pursue an in personam maritime claim in state court while retaining available common-law remedies. (*Lewis v. Lewis & Clark Marine, Inc.* (2001) 531 U.S. 438, 445, 454-455.) Jury trial is one of the remedies preserved in such an action. (*Id.* at p. 454.)

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The reverse-Erie doctrine requires this Court to apply substantive federal maritime law, but state law may govern procedural matters unless its application materially prejudices a characteristic feature of maritime law or interferes with maritime uniformity. (*Ranger v. Alamitos Bay Yacht Club* (2025) 17 Cal.5th 532, 544-545; *Intagliata v. Shipowners & Merchants Towboat Co.* (1945) 26 Cal.2d 365, 369-373.)

Defendants' stipulation to liability does not convert Plaintiff's remaining claim for compensatory damages into an equitable action. The amount reasonably required to restore the dock, whether particular work resulted from the allision, whether the work constituted repair or replacement, the dock's pre-casualty condition and useful life, and whether the repairs produced an economic betterment are factual components of the damages determination. Federal maritime law supplies the governing standards, but Defendants have not shown that those factual questions are inherently equitable or that submitting them to a jury would impair a substantive maritime right.

The authorities involving betterment, depreciation, and new-for-old adjustments establish substantive rules limiting recovery to restoration rather than enhancement. They do not establish that those factual determinations must be made by the Court in a state-court saving-to-suitors action. The jury may be instructed on the governing maritime standards, and a special verdict may be used to obtain the factual findings necessary for the Court to apply any potential legal limitation or offset.

Defendants' broader position would, as Plaintiff claims, effectively remove nearly every disputed damages issue from the jury merely because maritime law governs the measure of recovery. That result is inconsistent with the remedy preserved by the saving-to-suitors clause.

In sum, Defendants Pacific Coastal Cruises & Tours, Ltd. and Anthony Anania's motion to strike Plaintiff SHM Anacapa Isle, LLC's jury demand is DENIED.

Defendants' alternative request to remove the maritime damages and valuation issues from the jury and try those issues to the Court is also DENIED without prejudice to a properly presented request concerning any discrete statutory limitation-of-liability issues.